

STATE OF NEW YORK

6473--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 5, 2025

Introduced by M. of A. DAIS, OTIS, BURROUGHS -- Multi-Sponsored by -- M. of A. LEVENBERG -- read once and referred to the Committee on Tourism, Parks, Arts and Sports Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the arts and cultural affairs law, in relation to providing financial assistance to museums, zoos, botanical gardens, aquariums and other cultural institutions located in low-income urban, suburban or rural communities, or that provide educational services to students from such communities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Statement of legislative findings and intent. The legisla-
2 ture finds and declares that the state of New York is home to vast
3 educational resources in museums, historical societies, zoos, botanical
4 gardens, aquaria and cultural arts institutions that offer a wealth of
5 ways to engage children and adults and instill in them a lasting love of
6 learning.
7 The legislature finds that over 1,500 museums, historical societies,
8 zoos, botanical gardens, aquaria and cultural arts institutions in this
9 state now provide instruction to over six million children, and that
10 children in grades pre-kindergarten through twelve and adults enrolled
11 in continuing education programs should have broad and equal access to
12 such services.
13 The legislature further finds that community cultural arts insti-
14 tutions, in collaboration with teachers and schools, must design new and
15 innovative programs to engage learners in such pressing issues as
16 science, anthropology, history and arts literacy.
17 It is the intent of the legislature that the state provide financial
18 assistance to cultural arts institutions serving under-resourced urban,
19 suburban or rural communities to expand educational services through

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 access to museum collections, scholarship and virtual learning and
2 extend their uniquely valuable educational resources to the children and
3 lifelong learners of the state.

4 § 2. Short title. This act shall be known and may be cited as the
5 "museum education act".

6 § 3. The arts and cultural affairs law is amended by adding a new
7 section 61.15 to read as follows:

8 § 61.15. Education grants for museums. 1. The commissioner of educa-
9 tion shall develop and implement, with consultation and input from
10 representatives from the museum and cultural institution community, a
11 museum and cultural organization education grant program, and shall
12 award, within the amounts appropriated from the general fund for such
13 purpose, competitive grants in accordance with this section for the
14 purpose of establishing or improving education programs in museums and
15 cultural organizations designed to improve student performance in public
16 and nonpublic elementary, middle and secondary schools. Such grants
17 shall be expended to support the production of curricula, acquisition of
18 specialized educational or interpretive skills, acquisition and imple-
19 mentation of technology, and preparation of specialized exhibition or
20 public programs that are tailored to elementary, middle and secondary
21 school students; the development and delivery of continuing education
22 programs; provision of student transportation; and other programs that
23 support the development and delivery of curriculum-based programs in
24 museums with collections.

25 2. As used in this section, "eligible institution" shall mean: (a) a
26 nonprofit institution chartered by the board of regents, or otherwise
27 incorporated as a museum, historical society, nature center, zoo, botan-
28 ical garden, arboretum, aquarium or other cultural education institu-
29 tion, or a privately or municipally operated institution that meets the
30 applicable registration standards established by the board of regents
31 for museums or historical societies with collections, and that is
32 located in a low-income urban, suburban or rural community or provides
33 educational services to students and adult learners from low-income
34 urban, suburban or rural communities; (b) a museum authorized by a
35 special charter from the legislature of this state and that is located
36 in a low-income urban, suburban or rural community or provides educa-
37 tional services to students and adult learners from low-income urban,
38 suburban or rural communities; or (c) a private not-for-profit community
39 based organization, including an incorporated institution the sole or
40 primary purpose of which is the support of museums, historic sites or
41 historical societies located in a low-income urban, suburban or rural
42 community or that provides educational services to students and adult
43 learners from low-income urban, suburban or rural communities; except
44 that institutions operated by state or federal government agencies shall
45 not be considered eligible under this section.

46 3. The governing body or officer of an eligible institution requesting
47 a grant pursuant to this section shall submit an application at such
48 time, and in such form and containing such information, as the commis-
49 sioner of education may require. Such commissioner shall establish the
50 criteria and standards by which applications for grants to be awarded
51 pursuant to this section will be evaluated and made to eligible insti-
52 tutions. The commissioner of education is authorized to promulgate regu-
53 lations for the development and submission of applications for cooper-
54 ative or collaborative grants, provided that a single institution serves
55 as the applicant for such a grant and for multi-year grants.

1 4. The commissioner of education shall award grants, subject to avail-
2 able appropriations, in an amount not to exceed the allowable costs of
3 the eligible institution as determined by such commissioner. Allowable
4 costs shall include, but need not be limited to, the reasonable cost of
5 salaries and fringe benefits, materials and equipment. The commissioner
6 of education shall allocate twenty-five percent of the amounts appropri-
7 ated for such grants to award to institutions with an operating budget
8 of between ten thousand dollars and one hundred fifty thousand dollars
9 per year, twenty-five percent of the amounts appropriated for such
10 grants to award to institutions with an operating budget of between one
11 hundred fifty thousand one dollars and five hundred thousand dollars per
12 year, twenty-five percent of the amounts appropriated for such grants to
13 award to institutions with an operating budget of between five hundred
14 thousand one dollars and one million dollars per year, and twenty-five
15 percent of the amounts appropriated for such grants to award to insti-
16 tutions with an operating budget in excess of one million dollars per
17 year. Any remaining funds which are not awarded due to a lack of eligi-
18 ble applicants may be subsequently awarded according to criteria as
19 determined by the commissioner of education, irrespective of operating
20 institution budget size.

21 5. On or before March fifteenth, two thousand twenty-eight and on or
22 before March fifteenth of each year thereafter, the commissioner of
23 education shall submit to the chairs of the senate finance and the
24 assembly ways and means committees, and the director of the budget, a
25 report detailing the implementation of the provisions of this section,
26 including the extent of participation by eligible institutions, the
27 relationship of the programs provided to school curricula, the number of
28 successful and unsuccessful applicants by size of institution, and the
29 geographic dispersion of funds and participating institutions.

30 § 4. This act shall take effect on the three hundred sixty-fifth day
31 after it shall have become a law. Effective immediately the addition,
32 amendment and/or repeal of any rule or regulation necessary for the
33 implementation of this act on its effective date are authorized to be
34 made and completed on or before such effective date.